

25CHCP00304 25CHCP00304

County: los-angeles

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MOTION FOR
PRELIMINARY INJUNCTION

Motion filed on May 28, 2026.

MOVING PARTY: Ryan Jonathan Butler

RESPONDING PARTY: Phillip Gossman

NOTICE: Defective. Respondent has not appeared, and
Petitioner did not proceed by order to show cause served in the same manner as
a summons and complaint.

RELIEF REQUESTED: An order restraining Respondent from
alleged trespass, interference with gates and barriers, drone and other
surveillance, photographing private areas, interference with quiet enjoyment,
and destruction of surveillance-related evidence.

RULING: Denied.

BACKGROUND

Ryan Jonathan Butler (Petitioner) filed the operative Petition for Damages against Phillip Gossman (Respondent) on August 5, 2025. Petitioner filed this motion for preliminary injunction on May 28, 2026.

Petitioner filed three proofs of service by mail on July 23, 2026. One states that the summons and Petition for Damages were mailed on October 1, 2025. The other two state that the present motion and supporting papers were mailed on July 2, 2026. No opposition or reply was filed.

The Court denied a prior motion for preliminary injunction on March 12, 2026. An Order to Show Cause re Dismissal or Sanctions for Failure to Serve is set for August 21, 2026.

DISCUSSION

Procedural Compliance

A party may seek a preliminary injunction by noticed motion or order to show cause. A noticed motion may be used when no temporary restraining order is sought and the responding party has appeared. If the responding party has not appeared, an order to show cause must be used and must be served in the same manner as a summons and complaint. (Cal. Rules of Court, rule 3.1150(a).)

A summons and complaint may be served by personal delivery. (Code Civ. Proc., § 415.10.) Substituted service requires leaving the summons and complaint with a qualifying person at a proper location and thereafter mailing another copy. (Code Civ. Proc., § 415.20.) Service by mail requires mailing the summons and complaint with the prescribed notice and acknowledgment, followed by execution and return of the written acknowledgment. (Code Civ. Proc., § 415.30, subds. (a)-(c).) A preliminary injunction may not issue against a defendant who has not been served and has not appeared. (JHVS Group, LLC v. Slate (2024) 107 Cal.App.5th 30, 37-38.)

Here, the register of actions does not show that Respondent filed an answer, demurrer, cross-complaint, notice of appearance, or other responsive filing directed to the Petition. Although one of Petitioner's filings refers to "defendant's cross-complaint," the register does not identify any cross-complaint filed by Respondent. The only filing attributed to Respondent are proofs of service by mail filed on December 11, 2025. The record

therefore does not establish that Respondent appeared.

Because Respondent had not appeared, Petitioner was required to obtain an order directing Respondent to show cause why a preliminary injunction should not issue and to serve that order in the same manner as a summons and complaint. Petitioner instead filed a noticed motion. The record contains no request for an order to show cause, no order to show cause issued on this application, and no proof that an order to show cause was served.

The October 1, 2025 proof does not establish valid service of the summons and Petition. It states only that those documents were mailed to Respondent and was completed on form POS-030, which expressly states that it may not be used to prove service of a summons and complaint. It does not show personal service, substituted service, or service by mail completed through Respondent's execution and return of an acknowledgment of receipt. (Code Civ. Proc., §§ 415.10, 415.20, 415.30.)

The July 2, 2026 proofs of service concern mailing of the preliminary injunction motion, memorandum, supporting declaration, and other later-filed papers. They do not show that an order to show cause was obtained or served in the manner required for a summons and complaint.

The motion is denied on this basis.

Merits

Independently, Petitioner's present showing does not establish the likelihood of success and balance of interim harms required for preliminary relief. This determination does not adjudicate the ultimate merits of the pleaded claims.

In deciding whether to issue a preliminary injunction, the Court considers two interrelated factors: the likelihood that the moving party will prevail on the merits and the relative interim harm likely to result from granting or denying relief. (Smith v. Adventist Health System/West (2010) 182 Cal.App.4th 729, 749.) The moving party bears the burden of showing the grounds necessary for issuance of the injunction. (O'Connell v. Superior Court (2006) 141 Cal.App.4th 1452, 1481.) Regardless of the claimed harm, an injunction may not issue unless there is at least some possibility that the moving party will prevail. (Jamison v. Department of Transportation

(2016) 4 Cal.App.5th 356, 362.) The factual showing may be made through a verified complaint or affidavits or declarations showing satisfactorily that sufficient grounds exist for the injunction. (Code Civ. Proc., §§ 527, subd. (a), 2015.5.) When a petition seeks an injunction to restrain real property encroachments or protect easements, it must depict the premises by drawings, plot plans, photographs, or other appropriate means, or describe the premises in detail, including, if applicable, the length and width of frontage on a street or alley, the width of sidewalks, and the number, size, and location of entrances. (Cal. Rules of Court, rule 3.1151.)

Here, the Petition alleges that Respondent repeatedly entered Petitioner's property, removed signs, damaged a fence, operated drones that captured images through bedroom windows, blocked Petitioner's vehicle, and permitted vehicles to park or stop on Petitioner's side of the adjoining driveway. (Pet. ¶¶ 6-16.) The Petition is signed but unverified. (Pet. at 4.) Its allegations identify the factual theories supporting the requested injunction but do not themselves constitute evidence under Code of Civil Procedure section 527, subdivision (a).

Petitioner's memorandum asserts a likelihood of success on claims for trespass, invasion of privacy, and nuisance or quiet enjoyment. (Mem. 4-5.) It states general propositions concerning those claims but does not identify their elements, reference relevant authority, or explain how particular declaration testimony or exhibits show a reasonable probability of prevailing. It also does not identify which pleaded cause of action supports each category of requested restraint. The memorandum does not address the pleaded causes of action for harassment, intentional infliction of emotional distress, false imprisonment, or civil conspiracy. Quiet enjoyment is not pleaded as a separate cause of action.

The declaration does not supply the missing showing as to the alleged property intrusion. Petitioner alleges repeated entry and obstruction but does not identify when the incidents occurred, where they occurred in relation to an established property boundary, or whether Respondent personally committed each act. Petitioner also acknowledges that lawful easement rights may exist. (Butler Decl. ¶¶ 6-9.) The maps, plans, title materials, and photographs do not identify the disputed driveway corridor, boundary, access points, or scope of any easement with sufficient specificity to determine whether the alleged conduct occurred on property within Petitioner's exclusive possession.

The privacy showing is similarly insufficient. Petitioner states that Respondent admitted a camera was positioned toward the backyard but also states that Respondent claimed the relevant portions of the image were masked. (Butler Decl. ¶ 12.) Petitioner states that a drone operated over or near the property, was capable of observing private areas, and caused concern that images may have been obtained. He does not identify when the incident occurred or state that the drone photographed or recorded any private area. (Butler Decl. ¶¶ 15-19.) The only dated surveillance incident concerns Respondent allegedly photographing a delivery driver on December 8, 2025. (Butler Decl. ¶¶ 20-22.) That incident does not show entry onto Petitioner's property or observation of an area in which Petitioner had a reasonable expectation of privacy.

Petitioner states generally that Exhibits A1 through H2 are true and correct copies of photographs, screenshots, videos, correspondence, and other materials. (Butler Decl. ¶ 30.) Even assuming the exhibits are considered, the memorandum does not identify which exhibit supports which asserted fact or explain how the exhibits establish a probability of prevailing.

Petitioner also argues that the balance of harms favors relief because Respondent has no legitimate need to enter Petitioner's property or surveil private areas. (Mem. 6.) That argument assumes the disputed conduct occurred and that the areas at issue are within Petitioner's exclusive possession. It does not identify current or threatened conduct or address the unresolved boundaries, possible easement rights, or burden imposed by the requested evidence-preservation order.

Even if the merits were properly considered, Petitioner has not shown a probability of prevailing on the claims identified in the motion or that the balance of interim harms favors preliminary relief.

CONCLUSION

Petitioner's Motion for Preliminary Injunction is DENIED.